

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: David Wall	Team: Squad #13	CCRB Case #: 202307373	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/24/2023 9:00 PM	Location of Incident: 40th Precinct stationhouse	18 Mo. SOL 10/24/2024	Precinct: 40		
Date/Time CV Reported Fri, 08/04/2023 8:57 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 08/08/2023 8:57 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jermaine Webb	23514	935958	040 PCT
2. PO Jamel Jeffrey	02964	974210	040 PCT
3. PO Malachi Mckenith	02680	945983	M COURT
4. PO Deredel Rosario	23291	969342	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO John Sosa	02642	962115	040 PCT
2. PO Peter Murtsef	11705	902083	040 PCT
3. PO Chastidy Deterville	28117	971904	040 PCT
4. PO Dennis Driscoll	02405	970497	040 PCT
5. PO Geovanni Varela	18888	971721	040 PCT
6. LT Dan Ast	00000	936151	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Jamel Jeffrey	Abuse: Police Officer Jamel Jeffrey did not process § 87(2)(b) complaint regarding officers.	
B . PO Jermaine Webb	Force: Police Officer Jermaine Webb struck § 87(2)(b) with a blunt instrument.	
C . PO Jermaine Webb	Force: Police Officer Jermaine Webb used physical force against § 87(2)(b)	
D . PO Jermaine Webb	Discourtesy: Police Officer Jermaine Webb spoke discourteously to § 87(2)(b)	
E . PO Malachi Mckenith	Abuse: Police Officer Malachi Mckenith threatened § 87(2)(b) with the use of force.	
F . PO Malachi Mckenith	Discourtesy: Police Officer Malachi Mckenith spoke discourteously to § 87(2)(b)	
G . PO Jamel Jeffrey	Abuse: Police Officer Jamel Jeffrey threatened § 87(2)(b) with the use of force.	
H . PO Jamel Jeffrey	Force: Police Officer Jamel Jeffrey used physical force against § 87(2)(b)	
I . PO Malachi Mckenith	Force: Police Officer Malachi Mckenith used physical force against § 87(2)(b)	
J . PO Deredel Rosario	Abuse: Police Officer Deredel Rosario forcibly touched § 87(2)(b)	
K . PO Deredel Rosario	Abuse: Police Officer Deredel Rosario threatened § 87(2)(b) with the use of force.	

Officer(s)	Allegation	Investigator Recommendation
L . PO Deredel Rosario	Discourtesy: Police Officer Deredel Rosario spoke discourteously to § 87(2)(b)	
M . PO Deredel Rosario	Abuse: Police Officer Deredel Rosario strip-searched § 87(2)(b)	

Case Summary

On August 4, 2023, § 87(2)(b) filed this complaint in-person at the CCRB [01 Board Review].

On April 24, 2023, at approximately 9:00 PM, § 87(2)(b) went to the 40th Precinct stationhouse to make a complaint against police officers about something he saw on the news. Police Officer Jamal Jeffrey of the 40th Precinct allegedly told him he could not file this complaint (**Allegation A: Abuse of Authority – Refusal to Process Civilian Complaint**, § 87(2)(g)). As Police Officer Jermaine Webb of the 40th Precinct attempted to exit the stationhouse, he struck § 87(2)(b) with a metal gate and then pushed § 87(2)(b) (**Allegations B and C: Force – Other Blunt Instrument as Club, Physical Force**; § 87(2)(g)). PO Webb called § 87(2)(b) “soft” and “broke” (**Allegation D: Discourtesy – Word**, § 87(2)(g)). Police Officer Malachi McKenith of the 40th Precinct aimed his Taser at § 87(2)(b) and allegedly said, “You better not move or we’re gonna Taser your ass” (**Allegation E: Abuse of Authority – Threat of Force**, § 87(2)(g)). **Allegation F: Discourtesy – Word**, § 87(2)(g)). PO Jeffrey allegedly threatened to use a Taser against § 87(2)(b) (**Allegation G: Abuse of Authority – Threat of Force**, § 87(2)(g)). § 87(2)(b) was placed under arrest [02 Board Review], and PO Webb, PO Jeffrey, and PO McKenith carried § 87(2)(b) into the stationhouse, and then into the cell area (subsumed within **Allegation C; Allegations H and I: Force – Physical Force**, § 87(2)(g)).

§ 87(2)(b) was held at the 40th Precinct stationhouse until he was released on April 25, 2023, at approximately 7:30 PM. During that period, at an unknown time, while § 87(2)(b) returned to his holding cell from the bathroom, Police Officer Deredel Rosario of the 40th Precinct allegedly placed § 87(2)(b) against a wall and searched him, squeezing § 87(2)(b) penis while he searched (**Allegation J: Abuse of Authority – Forcible Touching**; § 87(2)(g)). § 87(2)(b) attempted to push off the wall, allegedly prompting PO Rosario to say, “Shut up, don’t move. If you move, I’ll fuck you up” (**Allegations K and L: Abuse of Authority – Threat of Force, Discourtesy – Word**; § 87(2)(g)). PO Rosario then allegedly pulled down § 87(2)(b) pants, exposing his underwear, and squeezed his penis a second time over the underwear (**within Allegation J; Allegation M: Abuse of Authority – Strip-Searched**, § 87(2)(g)).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received eight BWC videos related to this incident [03 Board Review]. The investigation was unable to obtain stationhouse security footage from the 40th Precinct given that the incident was reported to the CCRB four months after having taken place and the footage had expired [04 Board Review].

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jamal Jeffrey did not process § 87(2)(b) complaint regarding officers.

It is undisputed that on the date of the incident, outside the 40th Precinct stationhouse, there was a gated area that separates the entrance of the stationhouse from the public sidewalk. Civilians are not permitted to enter the gated area without permission from an NYPD officer. The gated area is enclosed by metal riot barriers, with one section of the barrier unhooked so that it can be opened and closed by officers exiting and entering the stationhouse.

§ 87(2)(b) stated in his CCRB interview [05 Board Review] that he went to the 40th Precinct stationhouse to file a complaint against police officers about an incident he saw on the news. While he waited outside the gated area in front of the stationhouse, § 87(2)(b) encountered PO Jeffrey. § 87(2)(b) told PO Jeffrey that he wished to enter the stationhouse to make a complaint, but PO Jeffrey told him he could not make a complaint. § 87(2)(b) made no mention of speaking to any other officer outside the stationhouse before PO Webb struck him with the gate (see Allegation B).

In PO Jeffrey's first BWC video [06 Board Review], at timestamp 21:04:32 on April 24, 2023/runtime 03:49, § 87(2)(b) has a conversation with PO Jeffrey regarding his desire to make a complaint against police officers. At runtime 04:48, § 87(2)(b) clarifies that he wishes to make the complaint at the stationhouse and receive a copy of his complaint. At 05:41, PO Jeffrey gives § 87(2)(b) his options on how to submit this complaint, to which § 87(2)(b) responds that he wishes for the 40th Precinct to send the complaint. PO Jeffrey agrees to do this for him and deactivates his BWC as he enters the stationhouse while § 87(2)(b) remains outside the gate. In PO Jeffrey's second BWC video [07 Board Review], approximately 37 minutes later, at timestamp 21:41:17/runtime 00:36, PO Jeffrey assists an unidentified individual in filing some paperwork inside the stationhouse when PO McKenith enters the stationhouse. PO Jeffrey then exits the stationhouse and approaches PO Webb, who is arguing with § 87(2)(b). At runtime 01:35, § 87(2)(b) reiterates that he wishes to make a complaint. In PO Jeffrey's final BWC video [08 Board Review], at timestamp 19:31:43 on April 25, 2023/runtime 02:00, PO Jeffrey releases § 87(2)(b) from custody. § 87(2)(b) does not mention his previous complaint or request to file it again during this portion of the incident.

PO Jeffrey's CCRB statement [09 Board Review] is generally consistent with his BWC footage. PO Jeffrey stated that after he spoke with § 87(2)(b) on April 24, 2023, at approximately 9:04 PM, about filing his complaint at the stationhouse, a supervisor instructed him to first take the complaint of another individual who had arrived at the stationhouse prior to § 87(2)(b). PO Jeffrey did not recall which supervisor this was. PO Jeffrey did not tell § 87(2)(b) that he could not file his complaint at the stationhouse. The supervisor told PO Jeffrey they would assign another officer to take § 87(2)(b) complaint, but PO Jeffrey did not know if the supervisor ultimately did so. Before PO Jeffrey could finish taking the other individual's complaint, PO McKenith entered the stationhouse telling him that there was "a guy acting up outside." PO Jeffrey, PO McKenith, and PO Webb then detained and ultimately arrested § 87(2)(b). On April 25, 2023, at approximately 7:31 PM, PO Jeffrey released § 87(2)(b) from the 40th Precinct. PO Jeffrey did not know whether § 87(2)(b) complaint had been taken at that point. PO Jeffrey did not recall if § 87(2)(b) asked PO Jeffrey to complete his complaint when he was released.

The 40th Precinct Roll Call for Tour 3 of April 24, 2023 [22 Board Review] shows that six supervisors were on duty when PO Jeffrey asked to file his complaint.

The BWC footage shows that PO Jeffrey had a detailed conversation with § 87(2)(b) about filing a CCRB complaint at the 40th Precinct stationhouse. At no point during this conversation did PO Jeffrey refuse to take § 87(2)(b) complaint or tell him that he could not file a complaint. BWC video shows that PO Jeffrey agreed to take § 87(2)(b) complaint and provide him with a copy. However, PO Jeffrey stated that he was instructed to assist another civilian with filing a report and that another officer would be assigned to assist § 87(2)(b). PO Jeffrey could not recall which supervisor told him this or whether the complaint was ultimately taken, and § 87(2)(b) did not mention speaking to any officer other than PO Jeffrey before PO Webb struck him with the gate (see Allegation B). § 87(2)(g)

§ 87(2)(g)

Allegation (B) Force: Police Officer Jermaine Webb struck § 87(2)(b) with a blunt instrument.

Allegation (C) Force: Police Officer Jermaine Webb used physical force against § 87(2)(b).

Allegation (D) Discourtesy: Police Officer Jermaine Webb spoke discourteously to § 87(2)(b).

Allegation (E) Abuse of Authority: Police Officer Malachi McKenith threatened § 87(2)(b) with the use of force.

Allegation (F) Discourtesy: Police Officer Malachi McKenith spoke discourteously to § 87(2)(b).

Allegation (G) Abuse of Authority: Police Officer Jamal Jeffrey threatened § 87(2)(b) with the use of force.

Allegation (H) Force: Police Officer Jamal Jeffrey used physical force against § 87(2)(b).

Allegation (I) Force: Police Officer Malachi McKenith used physical force against § 87(2)(b).

It is undisputed that PO Webb pushed § 87(2)(b) at least twice during their confrontation. It is also undisputed that PO McKenith aimed his Taser at § 87(2)(b).

§ 87(2)(b) stated in his CCRB interview [05 Board Review] that after he attempted to make his complaint at the 40th Precinct stationhouse, PO Webb attempted to exit through the metal gates in front of the stationhouse. While doing so, PO Webb purposefully struck § 87(2)(b) with the metal gate, causing § 87(2)(b) pain. When § 87(2)(b) asked why PO Webb hit him with the gate, PO Webb attempted to punch § 87(2)(b) in the face, which § 87(2)(b) dodged. PO Webb told § 87(2)(b) “If you know what’s good for you, back up.” PO Jeffrey and PO McKenith then attempted to restrain § 87(2)(b) approaching him with their Tasers drawn. Both PO Jeffrey and PO McKenith threatened to tase § 87(2)(b). PO McKenith then said to § 87(2)(b) “You better move or we’re gonna Taser your ass.” Ultimately, § 87(2)(b) was placed in handcuffs and arrested.

PO Webb’s BWC video [10 Board Review] shows PO Webb approaching § 87(2)(b) who is standing outside the metal gate, at runtime 00:35. PO Webb attempts to get § 87(2)(b) attention, as § 87(2)(b) is looking down at his phone at the time, and § 87(2)(b) appears to ignore PO Webb and not respond. At runtime 00:38, PO Webb forcefully pushes the metal gate open, striking § 87(2)(b) in the process, and then exits the gate. PO Webb then takes some action, causing § 87(2)(b) to move backwards away from PO Webb. The action he takes is not clear from this angle. PO Webb steps forward toward § 87(2)(b) and stands less than an arm’s length away from him, and then at runtime 00:44, PO Webb pushes § 87(2)(b) in his chest. § 87(2)(b) immediately moves back toward PO Webb, and PO Webb pushes him again. At runtime 01:00, PO Webb activates his BWC, capturing the audio of his conversation with § 87(2)(b) who says, “Yeah, you better fucking go live. Get your fucking hands off of me, don’t you fucking touch me.” Another officer, PO Peter Murtsef of the 40th Precinct, appears on camera and follows PO Webb and § 87(2)(b). PO Webb tells § 87(2)(b) to “get closer,” before extending his arm and telling § 87(2)(b) to “back up.” § 87(2)(b) swats PO Webb’s hand away, and PO Webb begins to walk away. As PO Webb walks away, at runtime 01:06, PO Webb says to § 87(2)(b).

§ 87(2)(b) “That’s what I thought, all you guys, you’re soft.” PO Webb continues to walk away and § 87(2)(b) continues to follow him as the two argue. At runtime 01:25, PO Webb says to § 87(2)(b) “You’re broke.” PO Webb and § 87(2)(b) move around to the side of the 40th Precinct stationhouse, standing near the 3rd Avenue - 138th Street 6 Train subway station, and continue to argue for approximately one minute. At runtime 02:40, PO Jeffrey approaches § 87(2)(b) with his Taser drawn, but aimed at the ground. PO Jeffrey steps between § 87(2)(b) and PO Webb and attempts to calm § 87(2)(b) down. At runtime 03:03, PO McKenith approaches with his Taser drawn and shouts for § 87(2)(b) to step back, and at runtime 03:06, he aims his Taser at § 87(2)(b) torso. § 87(2)(b) takes seven steps back, and PO McKenith stands in front of § 87(2)(b) with his Taser aimed at him for approximately one minute, continuously telling § 87(2)(b) to leave the area. While PO McKenith does this, § 87(2)(b) stands still, approximately three arms’ lengths away from him, and tells PO McKenith that he wishes to file a complaint. At runtime 03:54, § 87(2)(b) calmly asks PO McKenith to stop aiming his Taser at him. PO McKenith refuses because he “feels threatened.” § 87(2)(b) continues to remain calm and stand still. At runtime 04:11, PO McKenith says to the other officers, “Let’s EDP him.” § 87(2)(b) begins to walk away from the officers, but at runtime 04:18, PO Jeffrey and PO McKenith stop him and place him in handcuffs.

In PO McKenith’s BWC video [23 Board Review], at runtime 01:52, after § 87(2)(b) is handcuffed, PO McKenith says, “Let’s go this way.” § 87(2)(b) sits on the ground, and then PO Webb, PO Jeffrey, and PO McKenith lift him off the ground and carry him into the stationhouse. At 02:30, the officers reach the front desk with § 87(2)(b). PO McKenith says, “Stand up,” and § 87(2)(b) appears to remain limp. The officers then set § 87(2)(b) down and search him as he lies on the floor. At 04:13, § 87(2)(b) says, “Stop fucking stepping on me, nigger,” and then asks why the officers are stepping on him. At 04:21, PO McKenith responds, “Because you keep kicking,” and at 04:34, PO Webb’s knee is seen on top of § 87(2)(b) leg. § 87(2)(b) continues to shout that someone is stepping on him. At 05:20, PO Webb and PO Jeffrey lift § 87(2)(b) off the floor. § 87(2)(b) appears to attempt to fall to the floor again. PO McKenith grabs and lifts § 87(2)(b) right leg, and he, PO Webb, and PO Jeffrey carry § 87(2)(b) into the cell area.

PO Webb [11 Board Review] stated that he was returning to his post at the 3rd Avenue - 138th Street subway station when he exited the 40th Precinct stationhouse. There, he found § 87(2)(b) yelling obscenities at various different officers. PO Webb could not recall specifically what § 87(2)(b) was saying. PO Webb attempted to leave the stationhouse to return to his post, but § 87(2)(b) was standing in the way of the metal gate entrance. PO Webb asked § 87(2)(b) to move several times, to which § 87(2)(b) responded, “Fuck you, I’m not moving.” PO Webb then opened the gate, which made incidental contact with § 87(2)(b). PO Webb did not intend to hit § 87(2)(b) with the gate as he opened it. § 87(2)(b) grabbed PO Webb’s left wrist when PO Webb did this, causing PO Webb to pull away from § 87(2)(b). PO Webb did not attempt to punch § 87(2)(b). PO Webb did not throw a punch § 87(2)(b) at any point during this incident. PO Webb then pushed § 87(2)(b) back to create space between them. PO Webb told § 87(2)(b) to get closer to him, but he could not recall why he said this after pushing § 87(2)(b) away to create space. § 87(2)(b) did step closer to PO Webb, and PO Webb told him to back up. § 87(2)(b) refused these instructions, so PO Webb pushed § 87(2)(b) back a second time. PO Webb then decided to return to his post and began to walk away from § 87(2)(b) but § 87(2)(b) continued to follow PO Webb, and they continued to argue. PO Webb acknowledged calling § 87(2)(b) “soft” and “broke.” He called § 87(2)(b) “soft” to indicate that § 87(2)(b) was “a pushover,” and he called § 87(2)(b) “broke” because he understood § 87(2)(b) actions as a means to provoke a fight and then sue the NYPD for money. PO Webb saw PO Jeffrey approach with his Taser drawn. PO Jeffrey did not aim his Taser at § 87(2)(b).

or warn § 87(2)(b) that he could be tased. PO Webb saw PO McKenith approach § 87(2)(b) with his Taser aimed at him. PO Webb did not hear PO McKenith say to § 87(2)(b) “I’m gonna Taser your ass.” PO Webb did not recall whose decision it was to place § 87(2)(b) in handcuffs. PO Webb did not know why § 87(2)(b) was ultimately detained and did not know if § 87(2)(b) was under arrest. § 87(2)(b) could have been arrested for disorderly conduct and assaulting an officer.

PO McKenith’s CCRB statement [12 Board review] is generally consistent with the BWC footage. PO McKenith was on break and getting a snack from the bodega across the street when he saw PO Webb and § 87(2)(b) arguing outside the stationhouse near the subway entrance. PO McKenith saw § 87(2)(b) PO Webb, and an unknown officer shouting at each other but could not recall what they were saying to each other. PO McKenith did not recall if PO Webb attempted to punch § 87(2)(b) or if PO Webb and § 87(2)(b) pushed each other. PO Webb and the other officer were repeatedly telling § 87(2)(b) to back up, but § 87(2)(b) did not comply and instead walked towards them. PO McKenith then determined that less-than-lethal force was necessary to make § 87(2)(b) comply with the officers’ instructions and returned to the stationhouse to get a Taser. Once armed with a Taser, PO McKenith returned outside, approached § 87(2)(b) with his Taser aimed at him, and told § 87(2)(b) to back away from PO Webb. PO Jeffrey had joined PO Webb and was also standing with § 87(2)(b) PO McKenith believed § 87(2)(b) dangerous and violent given the tone and tenor of § 87(2)(b) shouting, and because he was standing too close to PO Webb and PO Jeffrey. PO McKenith believed that because PO Jeffrey was a younger and inexperienced officer, he needed to intervene to prevent PO Jeffrey from being injured. PO McKenith told § 87(2)(b) to “back up, go on your way, sleep this off, it’s over.” § 87(2)(b) continued to refuse these instructions. PO McKenith did not recall saying, “Back up or I’ll Taser your ass,” to § 87(2)(b) While PO McKenith spoke to § 87(2)(b) a group of people began to exit the subway station. Some of these individuals stopped and watched the argument between § 87(2)(b) and the officers. PO McKenith believed § 87(2)(b) continued the argument intentionally with the aim of inciting a riot and creating hazardous conditions with the crowd that was gathering. Therefore, § 87(2)(b) could have been arrested for disorderly conduct. These actions also led PO McKenith to conclude that § 87(2)(b) was emotionally disturbed. PO McKenith did not believe § 87(2)(b) was a danger to himself or others at that point. PO McKenith instructed PO Webb and PO Jeffrey to “cuff § 87(2)(b) up,” so that he could be removed to the hospital or summonsed for disorderly conduct, “Whichever came first.” § 87(2)(b) was then restrained and taken into the stationhouse so officers could further assess if § 87(2)(b) needed medical attention. PO McKenith made this decision on his own and did not receive any instruction to detain § 87(2)(b) PO McKenith saw that PO Jeffrey had his Taser brandished and pointed toward the ground. PO McKenith did not hear PO Jeffrey threaten § 87(2)(b) with the use of his Taser or aim it at § 87(2)(b) at any point. PO McKenith stated that the officers carried § 87(2)(b) into the stationhouse because § 87(2)(b) allowed himself to slump to the ground after being handcuffed.

PO Jeffrey’s CCRB statement [09 Board review] is generally consistent with the BWC footage. PO Jeffrey was assisting another individual at the stationhouse with filing a complaint when PO McKenith entered the stationhouse and said, “There’s a guy acting up outside.” PO Jeffrey then exited the stationhouse and found PO Webb and § 87(2)(b) arguing around the side of the building. PO Jeffrey approached with his Taser drawn and separated PO Webb and § 87(2)(b) while attempting to calm § 87(2)(b) down. PO Jeffrey did not aim his Taser at § 87(2)(b) or give him a verbal warning that he could be tased. PO Jeffrey did not hear of or witness PO Webb striking § 87(2)(b) with a gate, attempting to punch § 87(2)(b) pushing § 87(2)(b) or calling § 87(2)(b) “soft” or “broke.” PO McKenith approached with his Taser aimed at § 87(2)(b) and told § 87(2)(b) to back away from the officers. PO Jeffrey did not hear PO

McKenith say, “Back up or I’ll tase your ass.” PO McKenith told the officers, “Let’s EDP him,” and PO Webb, PO McKenith, and PO Jeffrey placed § 87(2)(b) in handcuffs.

§ 87(2)(b) arraignment sheet [02 Board Review] notes that he was housed at the 40th Precinct stationhouse from approximately 10:00 PM on April 24, 2023, to 6:00 AM on April 25, 2023, when he was removed to § 87(2)(b) Hospital before ultimately being returned to the 40th Precinct stationhouse at 2:45 PM that same day, and he was finally released at approximately 7:30 PM that day.

According to *Patrol Guide Procedure 221-01: Force Guidelines* [13 Board Review], force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control.” Officers must consider the following factors when determining the reasonableness of the use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject’s violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(b) alleged that PO Webb purposefully hit him with a metal gate, causing him pain. PO Webb stated that he did not intend to hit § 87(2)(b) with the gate and only made contact with him incidentally as he opened the gate. Further, PO Webb stated that § 87(2)(b) was shouting at officers and refused his requests to step out of the way of the gate, saying, “Fuck you, I’m not moving.” BWC video shows that § 87(2)(b) was standing directly in front of the metal gate outside of the 40th Precinct stationhouse. It is unclear from this angle if § 87(2)(b) was shouting at officers at that time. When PO Webb approached § 87(2)(b) and asked him to move, § 87(2)(b) was looking down at his phone, apparently ignoring PO Webb, and § 87(2)(b) did not appear to speak while looking at his phone. Only one second passed between PO Webb motioning for § 87(2)(b) to move and hitting him with the metal gate. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Further, § 87(2)(b) was not taking any aggressive or violent action, but rather looking down at his phone and not speaking, when PO Webb struck him with the gate. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

BWC video shows that § 87(2)(b) did not attempt to grab PO Webb’s left hand. The action taken by PO Webb immediately after hitting § 87(2)(b) with the gate is unclear from the BWC video. § 87(2)(b) alleged that PO Webb attempted to punch him in the face, while PO Webb stated that after § 87(2)(b) grabbed his left wrist, he pushed § 87(2)(b) back to create distance between them. § 87(2)(g)

§ 87(2)(b)

However, after this moment, it was PO Webb

who approached § 87(2)(b) and stood face-to-face with him before pushing him in his chest. In doing so, PO Webb forewent an opportunity to deescalate the encounter, and he instead approached § 87(2)(b) and pushed him when § 87(2)(b) was merely standing on the sidewalk after having already moved away from the gate. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to Patrol Guide Procedure 200-02: Department Values [14 Board Review], members of service pledge to maintain a higher standard of integrity than is generally expected of others, to value human life and respect the dignity of each individual, and to render service with courtesy and civility.

Per DCT Disciplinary Case No. 2015-15012 [15 Board Review], officers may use profanities “in the context of a dynamic situation over which [they are] attempting to gain control,” but may not do so when it “[serves] no legitimate purpose but to belittle” a civilian.

BWC video shows that PO Webb called § 87(2)(b) “soft” and “broke” during their confrontation. PO Webb stated that he called § 87(2)(b) “soft” to imply that § 87(2)(b) was “a pushover,” and that he called § 87(2)(b) “broke” because he believed § 87(2)(b) was trying to sue for financial gain. The colloquial understanding of the epithet “broke” is someone lacking in money, and “soft” implies that someone is meek or timid. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to Patrol Guide Procedure 221-08: Use of Conducted Electrical Weapons (CEW) [16 Board Review], a CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It is prohibited to use a CEW in situations that do not require the use of physical force. Active resistance is defined as using physically evasive movements to defeat a member of the service’s attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Officers may use a laser warning (pointing and placing the laser dot of an activated Taser on a subject) or a warning arc (displaying a visible and audible arcing of electricity between a Taser’s front electrodes) in conjunction with a verbal warning in order to attempt to gain voluntary compliance from the intended subject.

PO McKenith acknowledged aiming a Taser at § 87(2)(b) and BWC shows that he kept the Taser aimed at § 87(2)(b) chest for approximately one minute after § 87(2)(b) took seven steps away from PO Jeffrey. § 87(2)(b) was not complying with repeated instructions to leave the area and instead followed and argued with PO Webb, but he otherwise was not acting aggressively or violently. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) Upon PO McKenith aiming his Taser’s laser dot at § 87(2)(b) § 87(2)(b) complied with PO McKenith’s instructions to step away from PO Webb and PO Jeffrey by taking seven steps away from the officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

After this moment, however, § 87(2)(b) remained a safe distance away from the officers, standing approximately three arms' lengths from PO McKenith. § 87(2)(b) also calmed his demeanor and made requests of the officers to file a complaint on his behalf. Nevertheless, PO McKenith stood in front of § 87(2)(b) and continued to aim his Taser at him for approximately one minute. At that point, § 87(2)(b) had complied with PO McKenith's instructions to step back, was not exhibiting active aggression, was not under arrest or evading police custody, and was not a danger to himself or others. § 87(2)(g)

§ 87(2)(b) alleged that PO Jeffrey also verbally threatened him with the use of his Taser, and that PO McKenith said, "You better not move or we're gonna Taser your ass." While BWC video shows PO Jeffrey had his Taser brandished, he did not aim it at § 87(2)(b) or verbally threaten to use it. BWC also shows that PO McKenith did not say, "You better not move or we're gonna Taser your ass," or otherwise use profanity while threatening force against § 87(2)(b) § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Deredel Rosario forcibly touched § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Deredel Rosario threatened § 87(2)(b) with the use of force.

Allegation (L) Discourtesy: Police Officer Deredel Rosario spoke discourteously to § 87(2)(b)

Allegation (M) Abuse of Authority: Police Officer Deredel Rosario strip-searched § 87(2)(b)

§ 87(2)(b) stated in his CCRB interview [05 Board Review] that at an unknown point during his stay in the 40th Precinct holding cells, he requested to take a cigarette break. § 87(2)(b) was removed from his cell and escorted to the bathroom, where he smoked his cigarette and then exited to return to his cell. On his way back to his holding cell, PO Rosario pulled § 87(2)(b) aside, placed him against a wall, and began to search him. While searching § 87(2)(b) PO Rosario moved his hand up § 87(2)(b) leg toward his genital area and squeezed § 87(2)(b) penis over his pants. When this happened, § 87(2)(b) began to move his body, causing PO Rosario to push § 87(2)(b) back against the wall and say, "Shut up, don't move. If you move, I'll fuck you up." PO Rosario then pulled § 87(2)(b) pants down, leaving § 87(2)(b) only in his underwear, and squeezed § 87(2)(b) penis a second time over his underwear. PO Rosario focused his search on § 87(2)(b) genital area. § 87(2)(b) described PO Rosario as a large Hispanic male with short greying hair, and he noted that PO Rosario received an injury to his triceps during a subsequent incident on May 19, 2023 § 87(2)(b)

Because this complaint was filed with the CCRB four months after the incident date, stationhouse security footage could not be provided as it had already expired. No BWC video of this portion of the incident exists. § 87(2)(b) was unable to give a specific time or date for the occurrence of these allegations. BWC footage shows that § 87(2)(b) was held at the 40th Precinct stationhouse from approximately 9:50 PM on April 24, 2023, to approximately 7:30 PM on April 25, 2023 [03 Board Review]. § 87(2)(b) arraignment sheet notes that he was housed at the 40th Precinct from approximately 10:00 PM on April 24, 2023, to 6:00 AM on April 25, 2023, when he was removed to § 87(2)(b) Hospital before ultimately being returned to the 40th Precinct stationhouse at 2:45 PM that same day, and he was finally released at approximately 7:30 PM that day [02 Board Review].

PO Rosario [17 Board Review], a 6'2" tall, 230-pound Hispanic male, recalled § 87(2)(b) from the incident on May 19, 2023, when he received an injury to his triceps (see CCRB case § 87(2)(b)). He stated that he was present for duty on both April 24 and April 25, 2023. PO Rosario's tour did not coincide with the alleged incident on April 24, 2023, and he did not hear of § 87(2)(b) confrontation with PO Webb or his subsequent arrest that evening. PO Rosario was assigned to the Mobile Field Force on April 25, 2023. PO Rosario reported for duty at the 40th Precinct stationhouse at 5:30 AM before travelling to Manhattan to report to Roll Call for the Mobile Field Force assignment at 7:45 AM. PO Rosario did not return to the 40th Precinct stationhouse until approximately 7:30 PM to end his tour. PO Rosario did not recall going into the holding cell area or assisting any officer with any prisoner on April 25, 2023. PO Rosario was not familiar with § 87(2)(b) on April 25, 2023, and was not aware that § 87(2)(b) was housed in the 40th Precinct holding cells that day. PO Rosario did not recall having to restrain any unruly prisoner at the 40th Precinct stationhouse on April 25, 2023. PO Rosario did not push § 87(2)(b) against a wall to search him, did not threaten to "fuck up" § 87(2)(b), did not frisk § 87(2)(b) body, did not grab § 87(2)(b) penis, and did not witness or hear of any officer taking these actions or making this statement. PO Rosario did not hear § 87(2)(b) complain about receiving any such treatment at any point.

The Tour 2 Roll Call for April 24, 2023 [18 Board Review] indicates that PO Rosario was at court that day.

§ 87(2)(b) alleged that an officer fitting PO Rosario's description and having suffered the same injury as PO Rosario in case § 87(2)(b), forcibly frisked and searched him, groping his penis in the process, strip-searched him, groped his penis again, and told him that if he did not stop moving, he would "fuck [him] up." PO Rosario was not on duty during the portion of the incident which occurred on April 24, 2023, and he denied seeing § 87(2)(b) on April 25, 2023, and taking any of the alleged actions. Because this incident was reported to the CCRB four months after the fact, no stationhouse security footage could be acquired. No BWC video of this portion of the incident exists. § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Jeffrey has been a member of service for two years and has been a subject in one other CCRB complaint and two allegations. This case remains open as of writing this report. § 87(2)(g)
- PO McKenith has been a member of service for 16 years and has been a subject in 33 other CCRB complaints and 110 allegations, of which ten were substantiated. § 87(2)(g)
 - Case number 201308493 included an allegation of Abuse of Authority – Threat of Arrest, which was substantiated; Abuse of Authority – Threat of Force, which was closed as unable to determine; and Offensive Language – Ethnicity, which was substantiated.
 - Case number 201400407 included allegations of Force – Chokehold, which was closed as unable to determine; Force – Physical Force three times, one of which was substantiated and two were within NYPD guidelines; Abuse of Authority – Premises entered and/or searched, which was within NYPD guidelines; and Abuse of Authority – Property Damage, which was within NYPD guidelines.

- (g)
PO Rosario has been a member of service for four years and has been a subject in nine CCRB complaints and 34 allegations, none of which have been substantiated. § 87(2)(g)
(b) (7) (C)

Mediation, Civil, and Criminal Histories

- [illegible]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	<u>David Wall</u>	<u>Investigator David Wall</u>	<u>06/27/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>06/27/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date